

Raj Kumar Shukla v. Poorvanchal Vidyut Vitran Nigam Ltd. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 6 April 2023 · Writ-C No. 11321 of 2023 · **Writ disposed with liberty to seek mutation under clause 7.7.5.**

HEADNOTE

Where the registered consumer has died, a person seeking restoration of supply must first get his name mutated in respect of the premises under clause 7.7.5 of the U.P. Electricity Supply Code, 2005. A writ complaining that the licensee had not replaced a damaged meter was disposed of with liberty to take that remedy under the Code.

FACTUAL SUMMARY

Raj Kumar Shukla approached the Allahabad High Court complaining that Poorvanchal Vidyut Vitran Nigam Ltd. was not replacing a damaged meter at the premises for which he sought restoration of electricity supply. Counsel for the licensee, on instruction, stated that the registered consumer of those premises had died. The petitioner pressed the meter grievance in his own name while the connection remained in the name of the deceased consumer.

REUSABLE CONSTRUCTIONS

1. On the death of the registered consumer, mutation of the claimant's name under clause 7.7.5 of the U.P. Electricity Supply Code, 2005 is the first step toward restoration of supply, and a writ complaining of non-replacement of a damaged meter is disposed of with liberty to pursue that Code remedy. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7.5

Mutation before restoration where the registered consumer has died

HOLDING

Where the registered consumer has died, the person seeking restoration of electricity supply to the premises must, in the first instance, get his name mutated under clause 7.7.5 of the U.P. Electricity Supply Code, 2005. The writ seeking replacement of the damaged meter is disposed of with liberty to take the remedy under the Code. ¶ 1

PRINCIPLE TAGS

deceased-consumer-mutation-first-under-clause-7.7.5 The registered consumer having died, the Court required the petitioner to obtain mutation of his name under clause 7.7.5 before restoration of supply, and disposed of the damaged-meter writ with liberty to proceed under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO MUTATION AND TO REPLACEMENT OF THE DAMAGED METER

Left to the remedy under the U.P. Electricity Supply Code, 2005, after the petitioner seeks mutation of his name. ¶ 1

